



CITY OF BUFFALO
DIVISION OF AUDIT & CONTROL
CONTRACT FORM

FROM: Buildings - Jennifer Jacobs DATE: 8/14/2019
VENDOR ID NUMBER: 3059 CONTRACT # 93002507.
VENDOR NAME: LIRO Engineers, Inc.
FUND: Capital Projects
ACCOUNT CHARGEABLE: 33224006 - 445100
SPECIFIC GENERAL LEDGER DESCRIPTION:
AMOUNT: \$196,656.00
EXPLANATION: A/E/ Services
Police Shooting Range
DEPARTMENT HEAD SIGNATURE & DATE: [Redacted] 8/14/19

Please Answer Questions Below and Attach Proper Documents:

Approved to Form by Law Department

Yes

Contract has been Notarized

Yes

Printout of Current GL Account and Balances

Not Applicable

Is this Contract a Renewal?

No

Common Council Approval

ITEM 19 - 1218 DATE: 7/23/2019

INSURANCES

ExpirationDate

ExpirationDate

✓ GENERAL LIABILITY

11/1/2019 ✓

BUILDERS INSURANCE

✓ AUTOMOBILE LIABILITY

11/1/2019 ✓

INSTALLATION INS.

✓ EXCESS LIABILITY

11/1/2019 ✓

✓ PROFESSIONAL LIABILITY

11/1/2019 ✓

✓ WORKER'S COMPENSATION

11/1/2019 ✓

✓ NYS DISABILITY INS.

9/30/2020 ✓

OWNERS PROTECTIVE

OTHER

BOND NUMBER

RETENTION

INITIAL APPROVERS

Debt & Investment Auditor

8/21/19

Encumbering Contract Auditor

8/23/19

DEPT. OF AUDIT & CONTROL SIGNATURE APPROVALS

PRINCIPAL AUDITOR SIGNATURE

CITY AUDITOR SIGNATURE

8/28/19

DEPUTY COMPTROLLER SIGNATURE

8/28/19

COMMENTS:



The City of Buffalo Common Council

1413 City Hall
Buffalo, NY 14202

ADOPTED

AGENDA ITEM 19-1218

Meeting: 07/23/19 02:00 PM
Department: Buildings
Category: Permission Request
Prepared By: Melanie Galachiuk-Kelly
Initiator: Melanie Galachiuk-Kelly
Sponsors:
DOC ID: 10098 A

**Permission to Hire LiRo Engineers, Inc. - Buffalo Police
Shooting Range Facility -Ellicott**

I hereby request permission from Your Honorable Body to hire LiRo Engineers, Inc. (LiRo) as the consultant to provide architectural and engineering services for the design, construction administration, and inspection for a new Buffalo Police Shooting Range Facility. Through a Request for Proposal (RFP) process, DPW selected LiRo to provide such services after a review of all submitted RFP's.

I am requesting Your Honorable Body to authorize the Department of Public Works, Parks, and Streets to enter into all necessary agreements to provide architectural and engineering services, and cover all the necessary tasks needed to complete this project.

The cost for consulting service is estimated not to exceed \$ 200,000.00. Funds for this contract are available in account # 33224006 - 445100. I respectfully certify that this contract is fair and equitable for the work involved, and respectfully request that Your Honorable Body approve and authorize the Commissioner of Public Works, Parks & Streets to issue said contract to LiRo.

RESULT: APPROVED

RFP EVALUATION WORKSHEET - Buffalo Police Shooting Range

Project No: 1917

Prepared: 07/17/19

		\$676,480		\$196,656		\$208,910	
		LaBella		LIRo		Trautman Assoc.	
EVALUATION FACTORS		WEIGHT	RATING	WEIGHT	RATING	WEIGHT	RATING
Related Experience/References (25%)		9	15%	13	22%	7	12%
Resume of Key Personnel (10%)		10	7%	10	7%	9	6%
Fee Schedule (20%)		8	11%	14	19%	8	11%
Project Approach/ Quality Control Process (15%)		10	10%	12	12%	9	9%
Availability / Schedule (10%)		9	6%	11	7%	9	6%
Minority Business Opportunities (15%)		9	9%	12	12%	11	11%
Female Business Opportunities (5%)		8	3%	10	3%	10	3%
Evaluation Rating			60%		82%		58%
				SELECTED			

Notes:

- 1) Three raters were selected to evaluate and rate the proposals
- 2) The Raters rated the evaluation factors from the RFP by using the range of 5 for excellent and 1 for satisfactory.
- 3) All Individual panel member ratings were added together for each evaluation factor; 15 is the max weighted measure for each Evaluation Factor
- 4) Rating = weighted measure/15 * evaluation factor % in RFP

5)

Stephen M. Buccilli

Name

Signature

7-25-19

Date

Michael L. Muscarella

Name

Signature

7/25/19

Date

Patrick Sullivan

Name

Signature

7/25/19

Date

LIRO ENGINEERS
POLICE SHOOTING RANGE

1	\$ 4,080.00	30
2	\$ 7,460.00	104
3	\$ 32,612.00	350
4	\$ 8,000.00	0
5	\$ 38,064.00	372
6	\$ 54,264.00	539
7	\$ 6,412.00	46
8	\$ 45,764.00	488
	\$ 196,656.00	1929



Consultant Fee Schedule

2

LiRo's proposed fee is presented below. The fee includes all subcontractor and direct costs and is based on complete design of the 12,000 SF proposed facility on the identified property and all of the scope of work elements for each phase described by the RFP.

Request for Proposals BUFFALO POLICE SHOOTING RANGE FACILITY JOB # 1917

	LUMP SUM FEES	ANTICIPATED HOURS
1. Pre-Design, Scoping & Programming Phase	\$ 4,080 LS	30 Hrs
2. Site Development Phase	\$ 7,460 LS	104 Hrs
3. Schematic Design Phase	\$ 32,612 LS	350 Hrs
4. Environmental Phase	\$ 8,000 Hourly N.T.E.	
5. Design Development Phase	\$ 38,064 LS	372 Hrs
6. Construction Documents Phase	\$ 54,264 LS	539 Hrs
7. Bid Phase	\$ 6,412 LS	46 Hrs
8. Construction Administration/Closeout	\$ 45,764 LS	488 Hrs
FEE SUBTOTAL / HOURS SUBTOTAL	\$ 196,656 LS	1929 Hrs ✓
TOTAL CONTRACT FEE		\$ 196,656 ✓ LS

NOTES

- The above fee schedule shall be fully completed and included with your proposal. Payments shall be made, at minimum, monthly based on the percentage each task has been completed. In the event a task is not required or the project is canceled, the Consultant shall be paid only for work completed.
- The scope of work listed in this RFP supersedes all submitted proposals, unless the RFP has been modified by addendum or written documents from the owner.
- Fees quoted for each item shall include all costs associated with the item, including, but not limited to: mileage, reproduction, printing, phone calls, and postage.
- Prices quoted shall be based on the described Scope of Services and an estimated total construction plus A/E costs of \$ 1,100,000.00





CITY OF BUFFALO
DEPARTMENT OF
PUBLIC WORKS, PARKS & STREETS



BYRON W. BROWN
MAYOR

MICHAEL J. FINN
ACTING COMMISSIONER

June 27, 2019:

FRANCISCO GUZMAN
DEPUTY COMMISSIONER OF
BUILDINGS

RE: Request for Proposals
For Architectural, Engineering & Environmental Services

The Department of Public Works, Parks & Streets is soliciting proposals for professional Architecture, Engineering & Environmental services for the Public Improvements for:

BUFFALO POLICE SHOOTING RANGE FACILITY
JOB # 1917

Deadline for submittal is: FRIDAY, JULY 12, 2019 at 11:00am
(4) Copies of the completed proposal to be submitted to: City Hall Room 616

ON SITE WALK THRU: NONE

SCOPE OF WORK

1. The consultant shall provide professional architectural, and engineering services for the design of a new law enforcement shooting range facility, which includes as necessary HVAC, Electrical, Plumbing, Civil, and Structural engineering. This facility will be located at a City owned parcel at 341 Seneca Street. Proposed building shall be located at the southeastern corner of this property.

Building to be outfitted with multiple rooms, shoot lanes, appropriate ventilation and noise abatement. Range shall be oriented away from existing building located on parcel. Building shall be designed to New York State Energy Code with restriction of interior columns to provide clear span as basis-of-design.

Consultant shall meet with Public Works, and Buffalo Police Department to coordinate on type of firearms, ammunition, lane configuration, access, and space needs.

2. The building is to be a pre-engineered metal building sized to accommodate up to 12,000 square feet. Which includes ten (10) fully contained firing lanes, classroom space for 20 occupants, office space, breakroom, restrooms, mechanical area, fire protection, and 5,000 square feet of storage. Exterior mechanical units shall be located at or near grade and not on the roof of structure.
3. Proper air ventilation system for the firing range and general building to address indoor shoot lanes. Optimal soundproofing system to curb bullet noise pressure, and suppress the travel of noise from one corridor to another, and within the building. Interior walls and bullet traps must be designed and constructed to eliminate any chance of projectiles ricocheting back towards the shooting stalls or existing the shoot range. Establish protocol to separate bullets from the trapping media so that lead can be dispensed in a

sanitary manner. Shooting lanes shall be equipped with target retrieval system. Entrances and perimeter of the building shall be equipped with access controls and monitoring.

4. Consultant shall prepare a site topographic survey for pending development, which details existing utilities. Building utilities will include underground electric, natural gas, water, sewer, data, communications, and security. Site improvements include asphalt parking lot, sidewalk, drainage, lighting, and perimeter fencing.
5. Stormwater Pollution Prevention Plan (SWPPP) prepared per the requirements of the Buffalo Sewer Authority for post-construction stormwater management
6. Under the City of Buffalo Charter projects over one million dollars (\$1.0+ million) require a Public Art component. Consultant shall participate with DPW, and the City of Buffalo Arts Commission to determine the viability for inclusion of publicly created art into the project. The Consultant will attend meetings to coordinate the project with the proposed public art. Consultant will only be advisory in selection activates as the City Arts Commission will coordinate, oversee and select the art pieces for installation within the project. The Consultant will develop details for the construction documents to place, support, and secure the public art.

A 1950 Sanborn map shows a gas station located on the project site. Currently, a Phase II Environmental Site Assessment program has been developed and subsurface conditions are being investigated. The selected consultant will be provided the recommendations and magnitude of any impacts identified from this field investigation. Should additional investigation and/or remedial action be warranted they will be incorporated into the Shooting Range Construction package.

The project budget is currently **\$1.1 million dollars**, which includes all A/E services.

Design, Construction, and Bid Documents are to be completed within **5 months** from Notice to Proceed. Consulting services shall be phased as described below.

Professional services are expected to be sequential, therefore, work on each phase shall not start until the City provides the Consultant written direction to do so. **All projects being bid shall be registered with the City of Buffalo Permits and Inspections Office at the end of the Schematic Design, the consultant is responsible for paying the appropriate fees.**

The Consultant shall complete and file and pay all required fees for the City's "Major Site Plan Application", and necessary Zoning Variances. Items which are required under the major site plan application such as but not limited to SEQR shall be completed by the Consultant

The consultant shall structure their field investigation to minimize disruptions with daily operations, and restricted areas. The contract documents and phases of construction shall also be structured to maintain daily operations.

PRE-DESIGN, SCOPING & PROGRAMMING PHASE

1. Meetings with DPW staff and tenant agency representatives to determine scope of project, including relocation of parking lot storage plans, if necessary. Use of pre-fabricated shooting lanes to be explored, and if such units may be installed without a structure.
2. Conduct related existing field conditions observation to review of the existing facility to determine its condition and needs. The Consultant shall observe the adjacent building and grounds and use their professional judgment to determine the condition and make improvement recommendations.
3. Develop Memorandum of Understanding (MOU) to confirm project Scope for approval by owner.
4. Provide milestone schedule to owner showing anticipated dates for schematic design phase, design development phase, construction phase, bidding and negotiation and construction phase. Include specific dates and durations.

SITE DEVELOPMENT PHASE

1. Provide a lump sum fee for site topographic survey, and geotechnical services. Underground utility information shall be obtained if available from utility agencies and companies. The consultant shall coordinate with all sub consultants / contractors / vendors, as required, at no additional cost to owner. The consultant shall also determine and coordinate any additional desired destructive testing with DPW personnel.

SCHEMATIC DESIGN (SD) PHASE

1. Meet with DPW and tenant agency(s) as necessary to incorporate requests.
2. Determine and coordinate any additional required destructive testing with DPW personnel.
3. Prepare designs, sketches, memoranda, and such other media as necessary to represent the design concepts to the DPW and tenant agency(s).
4. Attend all required design meetings with the DPW, record accurate minutes and distribute same to all parties within five [5] days after the meeting date.
5. Submit samples, manufacturer data sheets, etc., of all proposed materials for DPW review, evaluation and comment.
6. Prepare **three [3]** complete sets of all final schematic design phase drawings, outline specifications and/or reports for DPW review and approval.
7. Review related documents (job number and description), if needed to eliminate duplication of work.
8. Prepare a preliminary itemized cost estimate for DPW review at the completion of the Schematic design phase.

9. Selection of scope and alternates shall be determined from an itemized construction cost estimate list based on the available budget. Pending schematic estimate Consultant shall budget for one (1) redesign at Design Development Phase to reduce facility.

ENVIRONMENTAL PHASE

1. Based on the Phase 2 Environmental recommendations, the consultant shall provide lump sum fee for design, monitoring, reporting, and additional A/E work. Should such recommendations not be provided prior to the RFP deadline, the consultant shall use the amount identified by DPW. In such case DPW will negotiate after consultant selection for services based on hourly rates.

DESIGN DEVELOPMENT (DD) PHASE

1. Based on the City approved Schematic Design, the Consultant shall prepare the Design Development documents. These shall consist of drawings and other documents that establish and describe the size and character of the project as to architectural, structural, mechanical and electrical systems, materials and such other elements as may be appropriate; including any required utility renovation/relocation. Where required types and amounts of Hazardous Materials to be removed or otherwise addressed.
2. Attend all required design development meetings with the DPW, record accurate minutes and distribute same to all parties within five [5] working days after the meeting date.
3. Site visits as required to review and verify field conditions.
4. Provide three [3] complete review sets of all working drawings at the following percentages of completeness: Fifty Percent [50%] for DPW review. Also, provide three [3] sets of technical specifications at the Fifty Percent [50%] completion for DPW review.
5. Prepare a construction **certified third party** itemized cost estimate for DPW review at the end of the Design Development Phase, in concert with the Fifty Percent [50%] review set. **In-house consultant estimates may be accepted with prior approval by project manager.**
6. Consultant to schedule a meeting with the City of Buffalo's designated sustainability personnel to discuss possible energy incentives associated with this project.

CONSTRUCTION DOCUMENT (CD) PHASE

Construction documents shall be prepared based upon the approved Design development documents. This shall include:

1. Design coordination meetings with the owner as necessary.
2. Periodic Site visits as required to review and verify existing field conditions vs. design scope.
3. Take preconstruction color photos to document site conditions and for the City to use as needed.

4. Provide plans and specifications for each project and phase required for bidding, construction and oversight of the contractor.
5. Obtaining all necessary approvals including, but not limited to: NY State Office of Parks, Recreation and Historic Preservation, City of Buffalo Zoning Board, City of Buffalo Planning Board, City of Buffalo Preservation Board, City of Buffalo Plan Review approval and all related utility companies. All approvals to be obtained PRIOR to bid. Plan review fees to be included in the in consultants base fee.
6. Construction documents shall be submitted for review and approval at 95% of completion.
7. Preparation and submission of a **certified third party** Cost Estimate at 95% of contract document completion. **In-house consultant estimates may be accepted with prior approval by project manager.**
8. Construction documents shall be formatted as **Single or Multiple** trade contract.
9. As required by Chapter 17 of the New York State Building Code, the Consultant shall prepare the Statement of Special Inspections and shall modify it as necessary to obtain the Code Enforcement Officer's approval.
10. All hazardous testing and design to be completed PRIOR to bid.
11. Prepare a series of alternates as required by project manager to remain within budget at no additional costs to owner.
12. Consultant shall be prepared to split the construction set up as many as (3) separate bid packages at no additional cost to owner.

BID PHASE

1. Prepare bid documents.
2. Include printing of up to (20) sets of the final approved construction documents for bidding, permitting and construction. **Consultant to include printing of construction sets in base fee.** Contractors responding to the advertisement for bids and wishing to obtain a set of plans and specifications shall submit a nonrefundable fee of \$58. All fees are to be collected by the consultant and forwarded to the city
3. Coordinate public advertisement for bid, as placed by City of Buffalo, and preparation of printed bid sets, including all required City of Buffalo front end documents (including bid form). These documents will be provided by City of Buffalo project manager.
4. Conduct a pre-bid walkthrough to describe the project and receive contractor input. Write meeting minutes and distribute including any addendum accordingly.
5. **Deliverables on the day of the Bid Opening:**
 - **Provide City of Buffalo representative with four (4) hard copies of the specifications including addendums for contracting purposes. Provide (1) Hard copy of the drawings.**

- One (1) electronic copy (ms word format) on a jump drive of the bidding documents (drawings / specifications including addendums).
 - Bidder's checks for bid docs.
 - A final list of the plan-holders for the project.
6. Prepare and distribute to all plan holders addenda(s) to answer contractor questions and, as necessary, to clarify the contract documents.
 7. Attend the bid opening, provide official sign in sheet and bid tabulation forms with the plan-holders pre-filled in.
 8. Review the bids, check for discrepancies and verify the bids, including relevant contractor experience. Document your findings and recommend which bidder is, in your firm's opinion, the lowest responsive and responsible bidder to the City on company letterhead.
 9. Make changes or revisions to the contract documents as may be required as a result of bidding cost overrun in excess of five percent [5%] of budget or consultant's estimate and supply additional copies, at A/E's expense, of revised documents and drawings as necessary for rebidding; all amendments must be incorporated into their proper location within either the plans and/or specifications.
 10. Coordinate post-bid meeting with all prime contractors within (1) week of bid and PRIOR to contract execution. Post-bid meeting to include, but is not limited to: Scope review, Insurance requirements, contract compliance requirements, and liquidated damage requirements. City project manager to invite city insurance and contract compliance personnel to meeting.

CONSTRUCTION ADMINISTRATION

1. Take preconstruction color photos to document site conditions and for the City to use as needed. The Consultant will also be responsible for producing color photos documenting completed work. The color photos will be keyed to a site map indicating the location that they were taken from and the perspective of the picture. Each color photo will need to be date and time stamped as well. These color photos will be part of the Final report submitted to the City. Pre-construction and Post construction photos should be taken from the same position when whenever possible.
2. Conduct a pre-construction meeting. Consultant shall chair, prepare and distribute minutes of the pre-construction meeting. Consultant shall request for approval:
 - List of Subcontractors
 - Schedule of Values
 - Construction Schedule
 - List and schedule of material submittals
 - Establish a Request for Information (RFI) process for construction.
3. Provide general administration of construction contract by periodic visits to the Project Site and inspections by the Consultant and members of their staff at least once a week. All persons engaged or employed on inspection shall be subject to the approval of the Commissioner of Public Works, Parks & Streets of Public Works, Parks & Streets. The inspection shall be such as to give proper direction on behalf of the City to the contractors

and to observe compliance with all contract requirements. This shall include inspection of the execution of the work and the materials and equipment installed by the contractors to the end that the project shall be completed strictly in accordance with the plans and specifications.

The Consultant will not be responsible for the construction methods, techniques, or procedures, or any safety procedures incidental thereto. However, any safety issues observed by the consultant is to be reported in writing, to the city project manager immediately.

4. Provide all 3rd Party testing, inspection, reporting and certifications required by the approved Statement of Special Inspections (Special Inspections Program) and by Chapter 17 of the New York State Building Code.
5. Check all shop and other working drawings of reinforcements, structural steel and other items intended to become a part of the project; examine the drawings submitted by all contractors. Check construction drawings with shop drawings, interpret the plans and specifications and determine any conflicts therein; furnish additional instructions and, when necessary, clarification drawings to carry out the work; issue such clarifying details (SK's) as may be required to achieve conformance with the contract drawings and specifications; prepare, analyze and recommend to the Commissioner of Public Works, Parks & Streets change orders and all modifications of the plans and specifications as may be necessary as the work progresses, and check the fairness of additional costs or credits to be charged or allowed in connection with such changes.
6. Review, approve or reject all submittals. Maintain submittal log. Distribute updated log at each construction meeting.
7. Review and answer all RFIs. Maintain RFI log. Distribute updated log at each construction meeting.
8. Maintain and provide a contractors invoice log of all payments. Consultant is responsible for approving all payments submitted by the contractor. A minimum of 4 completed and signed original sets of collated pay applications with all documentation required by the contract are to be sent to the City project manager for review and processing.
9. Consultation and advice to the City during construction.
10. Interpretation of contract documents and resolution of unanticipated field problems through conversations with the Contractor and visits to the site.
11. Review for compliance with design concept and take appropriate action on detailed construction and shop drawings, laboratory, and test reports for materials and equipment submitted by the Contractor.
12. As the construction progresses, Consultant shall issue field directives as necessary to ensure and verify that the work is performed according to the contract documents.
13. Assist in the coordination of the work of the contractors and run periodic job meetings at least every two (2) weeks with the contractors' and City representatives to expedite and coordinate the work and minimize possible interferences and delays. Coordinate meeting

schedule with City representative. Prepare meeting minutes and distribute to the City, contractor and other interested parties.

14. Review the Contractor's monthly payment requests for the completion of the work to date and make recommendation for payment by the City.
15. Consultant shall notify the City when a change in the work is proposed which may result in an adjustment of the contract cost or the allowable construction period. Consultant shall evaluate whether the proposed change is justified and reasonable. If necessary, Consultant shall prepare change order(s) and make recommendations for approval.
16. If required, prepare and sign as Owner's authorized agent, any Request for Variances from agencies having jurisdiction.
17. Where either required by law or by contract documents verify that required licenses and/or certifications of various workmen are correct and current. Examples, but not limited to: Welder's Certifications, Asbestos Handlers Certifications; Medical Clearance for respirators.

CONTRACT CLOSEOUT PHASE

1. Upon completion of construction, Consultant shall secure:
 - An executed and acknowledged general release from the Contractor.
 - The maintenance bond from the Contractor.
 - Required insurance from the Contractor connected with the work for the one year maintenance and guarantee period.
 - All necessary closeout documents required by the City.
2. Consultant shall also obtain and furnish to the City the following certifications from the Contractor:
 - That all bills are paid.
 - That all subcontractors, payrolls, materialmen, and other indebtedness associated with the work have been paid.
 - That releases of liens have been obtained from authorized subcontractors and materialmen, and from any property owners holding easements.
3. Obtain from the contractors all operating and maintenance data (O&M's), instructions, diagrams, replacement parts lists, guarantees and manufacturers' service directory, warranty and furnish a bound volume of the same, arranged for easy reference, to the Department of Public Works for a permanent record. **Must also be provided scanned on a jump-drive, indexed accordingly.**
4. Upon verifiable Substantial Completion, make a final and thorough inspection of the completed work to assure that it is in first-class condition and certify to the City the completion thereof in accordance with the drawings, plans and specifications to the best of the Consultant's ability, and thereupon approve the contractors' estimates and claims for final payment.
5. Consultant shall conduct a final inspection and report upon completion of the project, including recommendations to the City concerning acceptance, final payment to the

contractor, the release of the retained percentage of payments, if any, and the close-out of the construction contract. Consultant shall certify that the work under the contract has been completed in accordance with the plans and specifications.

6. **Upon completion of the construction.** Consultant shall provide all records to the City including a Final report - 2 color hard copies in 3 ring binder and pdf version on a jump drive for City's use. **Records shall include plans indicating the location of all completed work, weekly reports, all field notes, submittals, RFIs, photographs and other documents produced while working on this project. Must also be provided scanned on a jump-drive, indexed accordingly.**
7. The consultant shall remain the Owner's Representative to the contractors for the one [1] year Guarantee Phase for correction of construction deficits.
8. Upon completion of the record drawings, two (2) sets of drawings will be furnished to the City, together with two (2) sets of all record files in electronic format. Drawings shall be submitted in AutoCAD, TIFF and pdf format and all other documents shall be submitted in pdf format. Executive Summary will also be submitted, format to be provided by City. This summary may be requested prior to the completion of the construction in pdf and word format.

EVALUATION:

The City's objective in soliciting proposals is to enable it to select a respondent that will provide high quality and cost effective services to the citizens of Buffalo. The City will consider proposals only from respondents that, in the City's sole judgment, have demonstrated the capability and willingness to provide high quality services to the citizens of the City in the manner described in this RFP. Qualification statements will be evaluated by the City on the basis of which respondents are the most advantageous to the City based on experience and other factors considered.

Minority and Female Employment and Business Opportunities:

Pursuant to the Mayor's Executive Order #17-04, each Consultant team shall provide any relevant information with respect to any program or action taken to attract, recruit, retain and promote minority and female employees, partners and associates as well as actions taken to subcontract with Minority or Women Owned Business Enterprises (M/WBEs).

1. The factors to be considered include, but are not limited to, the following:
 - a. **Workforce:** Respondents should describe any programs or actions they undertake to attract, recruit, train, retain and promote minority and female employees, partners and associates, including direct hire programs, youth hiring programs or mentorship programs, and current representation of minority and female employees.
 - b. **Community Involvement:** Respondents should describe any programs or initiatives they sponsor or support that further the development of minority or women-owned business enterprises or increased minority/female workforce in the City of Buffalo.

- c. **Vendor Policies:** Respondents should describe any procurement policies or practices they have adopted that provide M/WBE suppliers or services business opportunities. The City maintains a goal of contracting with firms that subcontract to minority-owned businesses in the amount of 25% of total contract price or more and female-owned businesses in the amount of 5% of total contract price or more.

The final evaluation will consider:

1.	Related Experience/References	25%
2.	Resumes of key personnel	10%
3.	Fee Schedule	20%
4.	Project Approach/ Quality Control Process	15%
5.	Availability / Schedule	10 %
6.	Minority Business Opportunities	15%
7.	Female Business Opportunities	5%

Submitted RFPs to be indexed corresponding to the evaluation criteria listed above.

The City will select the most advantageous Qualification Statements based on all of the evaluation factors set forth in this RFP. The City will make the award(s) that is in the best interest of the City. Each proposal must satisfy the objectives and requirements detailed in this RFP except as otherwise stated. Successful respondents shall be determined by an evaluation of the total content of the proposal submitted. The City reserves the right to not select any of the Qualification Statements. The City shall not be obligated to explain the results of the evaluation process to any respondent.

INSURANCE REQUIREMENTS

The CONSULTANT shall secure policies of Workman's Compensation & NYS Disability, Professional Liability, General and Automobile Liability Insurance, and maintain said policies in force during the life of this contract in the limits set forth:

Workman's Compensation Insurance & NYS Disability:

This contract shall be void and of no effect unless the CONSULTANT shall secure Workman's Compensation Insurance for the benefit of, and keep insured during the life of this contract, such employees as are necessary to be insured in compliance with the provisions of the State of New York workmen's Compensation Law.

General Liability:

With respect to all operations the CONSULTANT shall carry Commercial General Liability insurance providing for a minimum limit of two million dollars (\$2,000,000) per occurrence and aggregate for all damages arising out of bodily injury, personal injury, property damage, products/completed operations, and contractual liability coverage for the indemnification provided under this contract.

Automobile Insurance:

With respect to any owned, non-owned, or hired vehicles the CONSULTANT shall carry Automobile Liability insurance providing for a minimum limit of one million dollars (\$1,000,000) per accident for bodily injury and property damage.

Professional Liability:

With respect to any damage caused by an error, omission or any negligent acts of the CONSULTANT, the CONSULTANT shall carry Professional Liability insurance providing two million dollars (\$2,000,000).

All policies of insurance required by this contract shall be provided and maintained at no cost or expense to the CITY and shall name the City of Buffalo as an Additional Insured and Certificate Holder with respect to the CONSULTANT'S activities. Professional Liability, Workmen's Compensation and NYS Disability Insurance shall name the City of Buffalo as a Certificate Holder.

All policies of insurance shall be provided by a company or companies authorized to do business in the State of New York. Before commencing the work, the CONSULTANT shall furnish to the CITY a certificate of insurance, and shall thereafter provide renewal certificates, as appropriate, evidencing such coverage written by a company or companies acceptable to the CITY. All certificates of insurance shall be subject to the approval of the Corporation Counsel of the City as to form and of the Comptroller of the City as to sufficiency. Such certificates and renewal certificates shall provide for a notice of cancellation, change, lapse or restrictive amendment by certified or registered mail at least thirty (30) days.

Any contractor or subcontractor performing work under this contract shall procure and maintain statutory insurance and other insurance as determined by the CONSULTANT so as to properly cover the liability of the CONSULTANT, contractor and subcontractor(s). The policy limits shall be the same as required of the CONSULTANT and the certificates of insurance shall be delivered to the CONSULTANT.

NOTES:

All Certificates MUST indicate and spell out **City of Buffalo** as additional insured where indicated and spell out the Address as 65 Niagara Square, **ROOM 616**

All Certificates MUST be submitted within (1) week of contract award letter.

INSTRUCTIONS FOR CONSULTANTS SUBMITTING PROPOSALS

1. Provide summary descriptions of related experience of your firm.
2. Complete the attached Consultant Fee Schedule.
3. Provide cost breakdowns per project phase and include anticipated hours spent by consultants for each project phase.
4. Prepare a brief statement outlining your availability to work within time frame allotted
5. Prepare a brief statement outlining your understanding of the identified scope of work, and your approach.
6. Resumes of key personnel. Identify the person(s), by name, who will oversee the work of this project, specifically the lead Project manager
7. The consultant should submit a flat hourly fee for each of the above titles identified.
8. Identify the sub-Consultants your firm will use on this project.
9. Deadline for submittal is: **FRIDAY, JULY 12, 2019, at 11:00am, City Hall Room 616. Submit 4 hard copies.** Submit one (1) electronic copy to sbuccilli@city-buffalo.com and **Francisco Guzman, fguzman@city-buffalo.com**
10. Please direct all requests for additional information, clarification to this Request for Proposal in writing to **Stephen M. Buccilli, P.E., sbuccilli@city-buffalo.com** and by calling 716-851-5853.

**Request for Proposals
BUFFALO POLICE SHOOTING RANGE FACILITY
JOB # 1917**

	LUMP SUM FEES	ANTICIPATED HOURS
1. Pre-Design, Scoping & Programming Phase	_____ LS	_____ Hrs
2. Site Development Phase	_____ LS	_____ Hrs
3. Schematic Design Phase	_____ LS	_____ Hrs
4. Environmental Phase	<u>\$ 8,000</u> Hourly N.T.E.	
5. Design Development Phase	_____ LS	_____ Hrs
6. Construction Documents Phase	_____ LS	_____ Hrs
7. Bid Phase	_____ LS	_____ Hrs
8. Construction Administration/Closeout	_____ LS	_____ Hrs
FEE SUBTOTAL / HOURS SUBTOTAL	_____ LS	_____ Hrs
TOTAL CONTRACT FEE		_____ LS

NOTES

1. The above fee schedule shall be fully completed and included with your proposal. Payments shall be made, at minimum, monthly based on the percentage each task has been completed. In the event a task is not required or the project is canceled, the Consultant shall be paid only for work completed.
2. The scope of work listed in this RFP supersedes all submitted proposals, unless the RFP has been modified by addendum or written documents from the owner.
3. Fees quoted for each item shall **include** all costs associated with the item, including, but not limited to: mileage, reproduction, printing, phone calls, and postage.
4. Prices quoted shall be based on the described Scope of Services and an estimated total construction plus A/E costs of **\$ 1,100,000.00**

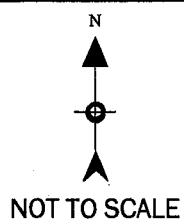


FIGURE 4 BORING PLAN

341 Seneca Street
Buffalo, New York 14202



PROJECT NO. 2191565

CONTRACT NO.

93002507

THIS AGREEMENT

AMOUNT \$

196,656

ACCT. CHARGEABLE

33224006-445100

MADE this 29th day of August, 2019 by and between

THE CITY OF BUFFALO

filed 8/29/19 PR

a domestic municipal corporation, with its principal office and place of business in Room 616 City Hall, #65 Niagara Square, in the City of Buffalo, County of Erie and State of New York, (hereinafter called the "City"),

Party of the First Part

and

LiRo Engineers, Inc.

with offices at 690 Delaware Avenue, Buffalo, New York 14209 (hereinafter called the "Consultant"),

Party of the Second Part

WITNESSETH:

WHEREAS, the City of Buffalo has determined to proceed with Architectural & Engineering Services for the Buffalo Police Shooting Range Facility Project; and

WHEREAS, the Common Council of the City of Buffalo pursuant to Resolution #19-1218 of the Common Council Proceedings of July 23, 2019 has authorized the Commissioner of Public Works, Parks & Streets to employ the services of a consultant to do a Design Development for the above referenced project; and

WHEREAS, the Consultant has submitted a proposal in writing to the Commissioner of Public Works, Parks & Streets to perform the aforesaid architectural and engineering services, and proposal has been found generally acceptable by the Commissioner of Public Works, Parks & Streets;

NOW, THEREFORE, in consideration of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

FIRST: EMPLOYMENT OF CONSULTANT. The City agrees to employ and hereby does employ the Consultant to perform Architectural & Engineering Services for the Buffalo Police Shooting Range Facility Project, as more fully set forth in section "THIRD" of this agreement.

SECOND: ACCEPTANCE OF EMPLOYMENT. The Consultant accepts such employment as set forth in section "THIRD" of this agreement, and subject to the conditions therein contained, agrees to devote its best architectural and engineering professional skill and judgment to the work and will so design, plan and inspect the work that every phase thereof will conform to all current local ordinances and all state and federal rules and regulations.

Whenever the Consultant shall deem the consulting services of persons outside of its own organization to be necessary, it shall employ such consultants at its own cost and expense, subject, however, to the prior approval of the Commissioner of Public Works, Parks & Streets. Whenever the City shall deem it advisable, after the first progress payment has been received, the Consultant shall furnish proof that all compensation due and owing to said consultants has been made prior to the receipt by the Consultant of progress payments on its fees from the City under this contract.

THIRD: WORK TO BE PERFORMED. The professional services to be rendered by the Consultant shall be done to the satisfaction of the Commissioner of Public Works, Parks & Streets and in form and manner approved by him, and shall include: The normal environmental, architectural and engineering services for the Buffalo Police Shooting Range Facility Project. More specifically, the Consultant shall provide the following:

SCOPE OF WORK

The Consultant shall provide professional architectural and engineering services for the Buffalo Police Shooting Range Facility Project, including Pre-Design, Scoping and Programming Phase, Site Development Phase, Schematic Design Phase, Environmental Phase, Design Development Phase, Construction Documents Phase, Bid Phase, Construction Administration and Contract Closeout Phase as written in LiRo's proposal dated July 12, 2019 and the City's Request for Proposals dated June 27, 2019.

FOURTH: CONSULTANT'S FEES

Payment from the CITY OF BUFFALO to the CONSULTANT shall not exceed \$196,656 as per proposal of July 12, 2019 (attached).

FIFTH: EXTRA WORK

No extra work beyond the scope of this agreement shall be performed by the Consultant unless the Commissioner shall, in writing, specifically direct such work to be performed. In the event such extra work is authorized, the City and the Consultant shall execute a supplemental contract describing the extra work and providing for the compensation to be paid therefor.

SIXTH: TIME FOR COMPLETION

The work required under this agreement shall be completed within a time schedule specified by the Commissioner in consultation with the Consultant, and said schedule shall commence after execution of this agreement by both parties.

SEVENTH: TECHNICAL DATA

The City shall make available to the Consultant all existing records and data which is pertaining to the proposed project. The original tracings and all notes, designs, drawings, specifications, reports and other technical data prepared by the Consultant or developed by it in the course of the construction of the project, are to be and become the property of the City upon completion of the work herein. The City shall have full rights to use the same thereafter without any claim on the part of the Consultant for compensation of any kind. All

such items shall be delivered to the City whenever requested, and until delivery to the City, access to such items shall be restricted to the Consultant and to authorized representatives of the City. The Consultant, however, shall be entitled to retain one or more copies of all such items.

EIGHTH: PRIOR TERMINATION OF CONTRACT

At any stage of the work, hereunder, the City shall have the right to terminate this contract, provided that compensation shall be made to the Consultant on the basis of the approved estimate of cost in proportion to the work which has been accomplished and approved, plus the expenses actually incurred by it to the date of termination, less any payments previously made.

NINTH: ASSIGNMENT

This agreement contemplates the particular services of the Consultant, and the Consultant shall not assign, transfer or otherwise dispose of this contract, or its right, title and interest therein, to any person, firm or corporation, except that moneys due to the Consultant and approved for payment by the City may be assigned by it to any bank or financial institution which is rendering financial assistance to the Consultant on this work.

TENTH: CONSULTANT'S COMPLIANCE WITH STATE LAW

The Consultant shall comply with all provisions of law regarding the corporate practice of architecture and engineering including, but not limited to the provisions of Section 7209 of the Education Law of the State of New York.

ELEVENTH: INSURANCE.

7

A. Indemnification

The Consultant agrees to procure and maintain insurance naming the City as additional insured where indicated, as provided and described in the attached Certification of Liability Insurance.

For all matters other than those arising out of the Consultant's professional services, the Consultant shall, to the fullest extent permitted by law, indemnify, defend, and hold harmless the City, its officials, officers, departments, employees, agencies, and agents, from and against any and all liability, damage, claims, demands, costs, judgments, fees, attorney's fees or loss(es), arising out of the performance or failure to perform under this Agreement by the Consultant or third parties under the direction or control of the Consultant. In addition, Consultant shall reimburse the City for any amounts incurred by or on behalf of the City in enforcing the provision, including, but not limited to, attorneys' fees.

For all matters arising out of the Consultant's professional services, the Consultant shall, to the fullest extent permitted by law, indemnify, defend, and hold harmless the City, its officials, officers, departments, employees, agencies, and agents, from and against any and all liability, damage, claims, demands, costs, judgments, fees, attorneys' fees or loss(es), arising out of any negligent acts, errors or omissions of the Consultant, or third parties under the direction or control of the Consultant, in the performance of professional services under this Agreement which are logically or casually connected by any common fact, situation, event, transaction, advise, or decision. In addition, Consultant shall reimburse the City for any amounts incurred by or on behalf of the City in enforcing this provision, including, but not limited to, attorneys' fees.

B. Insurance

The CONSULTANT shall secure policies of Workman's Compensation & NYS Disability, Professional Liability, General and Automobile Liability Insurance, and maintain said policies in force during the life of this contract in the limits set forth:

Workman's Compensation Insurance & NYS Disability:

This contract shall be void and of no effect unless the CONSULTANT shall secure

Workman's Compensation Insurance for the benefit of, and keep insured during the life of

this contract, such employees as are necessary to be insured in compliance with the provisions of the State of New York workmen's Compensation Law.

General Liability:

With respect to all operations the CONSULTANT shall carry Commercial General Liability insurance providing for a minimum limit of two million dollars (\$2,000,000) per occurrence for all damages arising out of bodily injury, personal injury, property damage, products/completed operations, and contractual liability coverage for the indemnification provided under this contract. Each annual aggregate limit shall not be less than \$2,000,000.

Automobile Insurance:

With respect to any owned, non-owned, or hired vehicles the CONSULTANT shall carry Automobile Liability insurance providing for a minimum limit of one million dollars (\$1,000,000) per accident for bodily injury and property damage.

Professional Liability:

With respect to any damage caused by an error, omission or any negligent acts of the CONSULTANT, the CONSULTANT shall carry Professional Liability insurance providing two million dollars (\$2,000,000).

All policies of insurance required by this contract shall be provided and maintained at no cost or expense to the CITY and shall name the City of Buffalo as an Additional Insured and Certificate Holder with respect to the CONSULTANT'S activities. Professional Liability, Workmen's Compensation and NYS Disability Insurance shall name the City of Buffalo as a Certificate Holder.

All policies of insurance shall be provided by a company or companies authorized to do business in the State of New York. Before commencing the work, the CONSULTANT shall furnish to the CITY a certificate of insurance, and shall thereafter provide renewal certificates, as appropriate, evidencing such coverage written by a company or companies

acceptable to the CITY. All certificates of insurance shall be subject to the approval of the Corporation Counsel of the City as to form and of the Comptroller of the City as to sufficiency. Such certificates and renewal certificates shall provide for a notice of cancellation, change, lapse or restrictive amendment by certified or registered mail at least thirty (30) days.

Any contractor or subcontractor performing work under this contract shall procure and maintain statutory insurance and other insurance as determined by the CONSULTANT so as to properly cover the liability of the CONSULTANT, contractor and subcontractor(s). The policy limits shall be the same as required of the CONSULTANT and the certificates of insurance shall be delivered to the CONSULTANT.

TWELFTH:

This Agreement shall be governed by the law of the State of New York and venue for all proceedings shall be in Erie County, New York.

IN WITNESS WHEREOF, the parties hereto have duly executed this agreement.

THE CITY OF BUFFALO

APPROVED
AS TO FORM ONLY

and
Corporation Counsel

By

[Redacted Signature]

8-13-19

[Redacted Signature]

Its Commissioner of Public Works,

Parks & Streets

DEPARTMENT OF AUDIT AND CONTROL

It is hereby certified that there remains unexpended and unapplied a balance of the appropriation or fund applicable and sufficient for payment of the expense of executing such contract as appears on the face hereof.

By:

[Redacted Signature]

Comptroller

LiRo Engineers, Inc.

Date:

8/28/19

By:

[Redacted Signature]

Its: SR. VICE PRESIDENT

STATE OF NEW YORK)
ERIE COUNTY) ss.:
CITY OF BUFFALO)

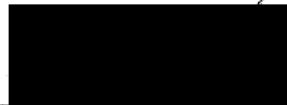
On 29th day of August in the year 2019, before me the undersigned, personally appeared Michael J. Finn, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her capacity, and that by his/her signature on the instrument, the individual, or the person upon behalf of which the individual acted, executed the instrument.



JENNIFER L. JACOBS
COMMISSIONER OF DEEDS
Is and For Buffalo and Erie County, NY
My Commission Expires Dec. 31, 2020

STATE OF NEW YORK)
ERIE COUNTY) ss.:
CITY OF BUFFALO)

On 6th day of August in the year 2019, before me the undersigned, personally appeared Robert Kreuzer, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her capacity, and that by his/her signature on the instrument, the individual, or the person upon behalf of which the individual acted, executed the instrument.



Notary Public, Buffalo, New York
My Commission expires: 7/6/19

MARTIN KOLIPINSKI
NOTARY PUBLIC, State of New York
Reg No. 01KO6027324
Qualified in Erie County
Commission Expires 7/6/2019 7/6/23



Consultant Fee Schedule

2

LiRo's proposed fee is presented below. The fee includes all subcontractor and direct costs and is based on complete design of the 12,000 SF proposed facility on the identified property and all of the scope of work elements for each phase described by the RFP.

Request for Proposals BUFFALO POLICE SHOOTING RANGE FACILITY JOB # 1917

	LUMP SUM FEES	ANTICIPATED HOURS
1. Pre-Design, Scoping & Programming Phase	\$ 4,080 LS	30 Hrs
2. Site Development Phase	\$ 7,460 LS	104 Hrs
3. Schematic Design Phase	\$ 32,612 LS	350 Hrs
4. Environmental Phase	\$ 8,000 Hourly N.T.E.	
5. Design Development Phase	\$ 38,064 LS	372 Hrs
6. Construction Documents Phase	\$ 54,264 LS	539 Hrs
7. Bid Phase	\$ 6,412 LS	46 Hrs
8. Construction Administration/Closeout	\$ 45,764 LS	488 Hrs
FEE SUBTOTAL / HOURS SUBTOTAL	\$ 196,656 LS	1929 Hrs
TOTAL CONTRACT FEE		\$ 196,656 LS

NOTES

1. The above fee schedule shall be fully completed and included with your proposal. Payments shall be made, at minimum, monthly based on the percentage each task has been completed. In the event a task is not required or the project is canceled, the Consultant shall be paid only for work completed.
2. The scope of work listed in this RFP supersedes all submitted proposals, unless the RFP has been modified by addendum or written documents from the owner.
3. Fees quoted for each item shall include all costs associated with the item, including, but not limited to: mileage, reproduction, printing, phone calls, and postage.
4. Prices quoted shall be based on the described Scope of Services and an estimated total construction plus A/E costs of \$ 1,100,000.00



VENDOR NAME:
CONTRACT #

LIRO ENGINEERS
93002507

	POLICY EFF	POLICY EXP	LIMITS	NYS ADM	NAIC	AGENCY
GENERAL	11/1/2018	11/1/2019	\$ 4,000,000	YES	16535	ZURICH AMERICAN INSURANCE COMPANY
AUTO	11/1/2018	11/1/2019	\$ 1,000,000	YES	31348	CRUM & FORSTER INDEMNITY COMPANY
EXCESS	11/1/2018	11/1/2019	\$ 11,000,000	YES	16535	ZURICH AMERICAN INSURANCE COMPANY
WORKERS COMP	11/1/2018	11/1/2019		YES	16535	ZURICH AMERICAN INSURANCE COMPANY
NYS DISABILITY	10/1/2018	9/30/2020		YES	81434	SHELTERPOINT LIFE INSURANCE COMPANY
PROFESSIONAL	11/1/2018	11/1/2019	\$ 5,000,000	YES	16535	ZURICH AMERICAN INSURANCE COMPANY